

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joseph Hennessy	Team: Squad #12	CCRB Case #: 202100028	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 12/13/2020 12:30 AM	Location of Incident: Front of the 40th Precinct stationhouse	18 Mo. SOL 6/13/2022	Precinct: 40		
Date/Time CV Reported Mon, 12/14/2020 2:50 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/04/2021 11:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Moises Martinez	08790	950832	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edi Radoncic	31617	953285	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Moises Martinez	Discourtesy: Police Officer Moises Martinez spoke discourteously to § 87(2)(b)	A . Substantiated
B . POM Moises Martinez	Abuse: Police Officer Moises Martinez threatened § 87(2)(b) with the use of force.	B . Substantiated
C . POM Moises Martinez	Abuse: Police Officer Moises Martinez threatened § 87(2)(b) with the use of force.	C . Substantiated

Case Summary

On December 14, 2020, § 87(2)(b) filed this complaint over the phone with IAB. The CCRB received this complaint on January 4, 2021.

On December 13, 2020, at approximately 12:30 a.m., a taxi refused to take § 87(2)(b) and an unidentified passenger known only as § 87(2)(b) to their destination and instead drove them to the 40th Precinct stationhouse to have them removed from the vehicle. Officer Moises Martinez of the 40th precinct told § 87(2)(b) “Get out of the fucking car” (**Allegation A: Discourtesy, Substantiated**). Officer Martinez verbally and physically threatened to pepper spray § 87(2)(b) if he did not exit the vehicle (**Allegation B: Abuse of Authority, Substantiated**) (**Allegation C: Abuse of Authority, Substantiated**). No one was arrested and no summons were issued.

The investigation obtained BWC footage from Officer Martinez that captured parts of the incident (BR02; summarized in BR03). The investigation also obtained cell phone footage of the incident recorded by § 87(2)(b) (BR09; summarized in BR11).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Moises Martinez spoke discourteously to § 87(2)(b)

It is undisputed that Officer Martinez used discourteous language towards § 87(2)(b) as it is depicted in Officer Martinez’s BWC footage.

§ 87(2)(b) provided a detailed statement to the CCRB via telephone on January 7, 2021 (BR01). On December 13, 2020, at approximately 12:30AM, § 87(2)(b) and his coworker, § 87(2)(b) called a taxi through the ridesharing service Lyft. § 87(2)(b) did not know § 87(2)(b) last name. A taxi arrived in front of their workplace. § 87(2)(b) § 87(2)(b) in the Bronx. § 87(2)(b) and § 87(2)(b) entered the vehicle. § 87(2)(b) asked the driver if he could make an additional stop at Burnside Avenue and Grand Concourse. The driver denied the request, and § 87(2)(b) told the driver to take them to the original destination that had been indicated in the app, § 87(2)(b). The driver drove to the 40th Precinct stationhouse at 257 Alexander Avenue in the Bronx. The driver pulled up in front of the stationhouse. The driver exited the vehicle and spoke with Officer Martinez and Officer Edi Radoncic, who were standing in front of the stationhouse. Officer Martinez walked towards the rear driver side door of the taxi. Officer Martinez opened the rear driver side door and told § 87(2)(b) to exit the vehicle. § 87(2)(b) said that he would not exit the vehicle until he was issued a refund. § 87(2)(b) and Officer Martinez repeated this verbal exchange approximately five times.

Officer Martinez’s BWC (BR02) shows that Officer Martinez, who is present with his partner, Officer Edi Radoncic, approaches the rear driver side door of the vehicle and opens it. After the vehicle door opens, the audio stream of the BWC footage begins. Officer Martinez instructs § 87(2)(b) to exit the vehicle nine times in the two minutes and five seconds before he uses profanity. § 87(2)(b) responds to three of these requests by saying that he will not exit the vehicle until he is reimbursed by the vehicle’s driver. During the other requests § 87(2)(b) remains silent or speaks with the vehicle’s driver. Officer Martinez says to § 87(2)(b) “He don’t want you in the car anymore.” § 87(2)(b) does not use any profane language in his conversation with Officer Martinez nor does he say anything that constitutes a threat. Officer Martinez says to § 87(2)(b) “If you don’t get out of the car, I’m going to get you out of the car.” Officer Martinez uses the word “fuck” three times, saying, “Get out of the car. Get out of the fucking car, I’m going to get you. Fuck. Get

out of the car. Get out of the fucking car,” between 3:06-3:12 minutes in the recording.

Officer Martinez stated in his CCRB interview (BR04) that he used discourteous language because § 87(2)(b) would not listen to him when he spoke to § 87(2)(b) normally. Officer Martinez did not provide any other reason as to why he used discourteous language. Officer Martinez stated that it was necessary for § 87(2)(b) and the other passenger to exit the vehicle because the driver was not safe with the two passengers in his vehicle and because he was not going to force a cab driver to be in a car with a hostile male.

Patrol Guide Procedure 200-02 requires officers to “render our services with courtesy and civility” (BR10).

In DCT case number 79627/04 (BR12), the courts have made an exception for when a “single profanity, uttered during what was a tense street standoff with an unruly civilian, does not rise to the level of actionable misconduct.” In this case, the civilian verbally refused an officer’s lawful instruction to leave a location, and the officer used the discourtesy “fuck” in the context of a command while telling the civilian to leave. This case also entailed the presence of a crowd and the potential that “the refusal [would] encourage others to do likewise, thereby possibly igniting the crowd and converting what had been a benign street situation into a potentially dangerous and even explosive one.”

As per the Patrol Guide, officers are required to act courteous in their dealings with civilians. § 87(2)(b) did refuse several direct orders issued by a police officer, as the vehicle’s owner had said that he wanted the passengers to exit his vehicle. § 87(2)(g)

§ 87(2)(b) the only civilians present during this incident are § 87(2)(b) the unidentified passenger, and the taxi driver who requested the officers’ assistance. Officer Martinez is present with his partner Officer Radoncic and the incident occurred directly outside of the precinct stationhouse. § 87(2)(g)

§ 87(2)(g) it is recommended that

Allegation A be closed as **Substantiated**.

Allegation (B) Abuse of Authority: Police Officer Moises Martinez threatened § 87(2)(b) with the use of force.

Allegation (C) Abuse of Authority: Police Officer Moises Martinez threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that after his verbal exchange with Officer Martinez, Officer Martinez took out his pepper spray, said, “I’ll show you aggressive,” and pointed the pepper spray at § 87(2)(b) for approximately 25 seconds. Officer Radoncic moved his body in between § 87(2)(b) and Officer Martinez at the rear driver side door. Officer Radoncic pushed Officer Martinez away from the car and towards the precinct stationhouse. Officer Martinez stopped aiming his pepper spray at § 87(2)(b) exited the car of his own volition. § 87(2)(b) and § 87(2)(b) then walked to East 138th Street and Grand Concourse to find another taxi.

§ 87(2)(b) cell phone footage (BR09) does not capture this portion of the incident.

Officer Martinez's BWC footage (BR02) depicts Officer Martinez's gloved left hand at 3m04 seconds with nothing in it. The footage then shows Officer Martinez holding a blue cylindrical object in his left hand from 3:08-3:12 minutes in the recording. While holding his OC spray, Officer Martinez states, "I'm going to get you. Get out of the car, get out of the fucking car," at 3m08 seconds. Officer Martinez moves his left hand first forward towards § 87(2)(b) roughly two feet away from § 87(2)(b) before pulling his hand back and then moving it up and down approximately four feet from § 87(2)(b). Officer Martinez's holds his OC spray in § 87(2)(b) direction for no more than six seconds. Officer Martinez does not train his OC spray on a specific location on § 87(2)(b) body at any point, as his left hand is moving throughout the time in which he holds his OC spray. Officer Martinez's BWC footage does not depict Officer Martinez saying to § 87(2)(b) that the process for receiving a refund was done online and that he would need to take pictures of the driver's plates. Officer Martinez's BWC footage does not depict § 87(2)(b) saying, "Fuck that, I'm not leaving," or calling Officer Martinez a "bitch." Throughout Officer Martinez's BWC, § 87(2)(b) remains seated in the rear driver's seat of the vehicle.

Officer Martinez provided testimony to the CCRB (BR04). Officer Martinez stated the driver told him and Officer Radoncic that the two passengers in his cab were acting aggressively towards him and he was afraid that they might do something violent towards him. The driver stated that the passengers had pulled his shirt because they wanted him to pull over and drop one of the passengers off at a secondary location, which the driver refused to do. The driver did not indicate which passenger grabbed him by the shirt. Officer Martinez walked up to the rear driver side door and pulled it open. Officer Martinez told § 87(2)(b) that he needed to leave the vehicle because the cab driver did not want to deal with him. Officer Martinez believed that § 87(2)(b) was drunk because he was being aggressive and was not listening to Officer Martinez. Other than his loudness and unwillingness to listen, nothing else suggested to Officer Martinez that § 87(2)(b) was drunk. Officer Martinez told him that the process for receiving a refund was done online, and that he would need to take photos of the driver's plates and call Lyft. § 87(2)(b) would not listen to Officer Martinez. § 87(2)(b) said to Officer Martinez that he would not leave the vehicle. Officer Martinez removed his OC pepper spray and held it in his left hand. Officer Martinez did not point his OC spray at § 87(2)(b). Officer Martinez stated that he did not make any statements referencing his OC pepper spray. Officer Martinez took out his OC spray before going to grab § 87(2)(b) because he thought that the situation was going to go "sideways," and he would rather have his OC spray in his hand than to have to reach for it.

Officer Martinez's BWC footage (BR02) shows that certain elements of § 87(2)(b) statement to the CCRB were inaccurate. Specifically, Officer Martinez never said, "I'll show you aggressive." Additionally, Officer Martinez never pointed his OC spray at § 87(2)(b) at all, let alone for the 25 seconds that § 87(2)(b) alleged.

The BWC footage instead shows that Officer Martinez removed his OC spray from his holster and held it in his left hand sometime in the four seconds before Officer Martinez said, "I'm going to get you. Get out of the car, get out of the fucking car."

Patrol Guide Procedure 221-07 delineates the circumstances under which an officer may use O.C. pepper spray. O.C. pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody, against individuals who are exhibiting active aggression, or to prevent individuals from physically injuring themselves, members of the service, or other persons. Officers are directed not to use O.C. pepper spray on subjects who passively resist (i.e.,

minimal physical action to prevent a member from performing their lawful duty). This procedure also directs members of service to avoid using O.C. pepper spray in small, contained areas such as automobiles (BR14).

§ 87(2)(g)

The BWC footage captured Officer Martinez stating, “I’m going to get you,” while he held the OC pepper spray in his hand. The BWC footage shows that Officer Martinez made this statement immediately prior to telling § 87(2)(b) “Get out of the car.” § 87(2)(g)

The BWC footage shows that Officer Martinez moved his left hand with the canister of O.C. pepper spray towards § 87(2)(b) approximately one foot from his face, before pulling the canister back and moving it up and down approximately four feet from § 87(2)(b). The BWC shows that Officer Martinez did not train his O.C. spray on a specific location on § 87(2)(b) body at any point, as his left hand was moving throughout the time in which he held his O.C. spray. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR07).
- Officer Martinez has been a member of service for two years and has been a subject in five CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of March 31, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR08).

Squad No.: 12

Investigator: Joseph Hennessy Investigator Hennessy March 22, 2022
Signature Print Title & Name Date

Squad Leader: Carlmais Johnson IM Carlmais Johnson April 6, 2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date